NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH

PRESENT: JUSTICE TELAPROLU RAJANI – MEMBER JUDICIAL

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING HELD ON 02.11.2021 AT 10.30 AM

TRANSFER PETITION NO.	
COMPANY PETITION/APPLICATION NO.	CA(A) merger & Amalgamation /6/230/AMR/2021
NAME OF THE COMPANY	Saiyana Warehouse Pvt Ltd (Transferor Co1) & Avanthi Warehousing Services Pvt Ltd (Dermerged Company/Transfere Co.)
NAME OF THE PETITIONER(S)	
NAME OF THE RESPONDENT(S)	
UNDER SECTION	230

Counsel for Petitioner(s):

Ries

Name of the Counsel(s)	Designation	E-mail & Telephone No.	Signature

Counsel for Respondent(s):

Ries

Name of the Counsel(s)	Designation	E-mail & Telephone No.	Signature

ORDER

CA(A) Merger & Amalgamation 6/230/AMR/2021 is allowed, vide separate sheets.

(JUSTICE TELAPROLU RAJANI)
MEMBER JUDICIAL

RSN

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,
AMARAVATI BENCH
AT HYDERABAD

CA (A) Merger & Amalgamation No.6/230/AMR/2021

In the matter of Section 230 to 232 of the Companies Act, 2013

AND

In the matter of Scheme of Arrangement between Saiyana Warehouse Private Limited (Transferor Copany-1); Aware Logistics Private Limited (Transferor Company-2); Avanthi Warehousing Services Private Limited (Demerged Company/Transferee Company-1) and Awaze Limited (Transferee Company-2).

M/s Avanthi Warehousing Services Private Limited
having its Registered Office at
D.No.24/2/10, D2, II Floor,
Neel Home Dargamitta,
Nellore – 524003,
Andhra Pradesh. **... Applicant/Demerged Company/ Transferee Company-1**

M/s Saiyana Warehouse Private Limited
having its Registered Office at
D.No.24/2/10, D2, II Floor,
Neel Home Dargamitta,
Nellore – 524003,
Andhra Pradesh. **... Applicant/Transferor Company-1**

Date of order: 02.11.2021

Coram:

Justice Telaprolu Rajani, Member (Judicial)

Parties present:

For the Applicants: Mr. Dukka Sriram Pavan Kumar, Advocate
Ms. Adduri Lakshmi, PCS

Per: Telaprolu Rajani, Member (Judicial)

ORDER

1. The present Company Application filed under Sections 230 to 232 of the Companies Act, 2013 read with the Companies (Compromises,

Arrangements and Amalgamation) Rules, 2016 seeking permission to dispense with the meetings of the Equity Shareholders, Secured and Unsecured Creditors of the both the Applicant Companies for consideration of the Scheme of Arrangement (the Scheme for short) between the Applicant Companies.

2. The Registered Office of the Applicant Companies are situated in the State of Andhra Pradesh. The Registered Office of the Transferor Company-2 and Transferee Company-2 are situated in the State of Telangana.

3. The Demerged/Transferee Company-1 Company was incorporated as a Private Limited Company on 11.02.1977. The Authorised Share Capital as on 31.03.2020 is Rs.12,00,00,000/- divided into 1,20,00,000 equity shares of Rs.10/- each. The issued, subscribed and paid up equity share capital is Rs.11,83,80,700/- divided into 1,18,38,070 equity shares of Rs.10/- each. The main objects of the Company are to construct, build, equip, finance, own and maintain and to carry on the business as keepers of warehouses, storage chambers, cold storages, godowns, ice-plants, freezing houses, refrigerators and to provide facilities for storage commodities, products, articles and things of every nature, kind and description etc.

4. The Transferor Company-1 was incorporated as a Private Limited Company on 08.06.2000. The Authorised Share Capital as on 31.03.2020 is Rs.11,00,00,000/- divided into 1,10,00,000 equity shares of Rs.10/- each. The issued, subscribed and paid up equity share capital is Rs.10,50,00,000/- divided into 1,05,00,000 equity shares of Rs.10/- each. The main objects of the Company are to carry on the business of producing, manufacturing, sale, purchase, processing, export, import, deal and trade in, produce all food products, cereal products, beverages, tea, coffee, cocoa, seeds, fruits, vegetable and

products thereof, provisions of all kinds, plantations, natural and synthetic rubber, cattle food, oil extractions, and manufacturers, millers, four milling, cold storage plants and refrigeration equipment and other apparatus for preservation of agricultural and dairy produce, poultry products and foodstuff, and to take up and deal in such goods or activity as may be required by business, etc.,

5. According to the Applicant Companies, the proposed Scheme will reduce administrative costs and also result in reduction of overheads and other expenses, reduction administrative and procedural work, enable the Demerged Company/amalgamated Company, Resulting Company to affect internal economies and optimize profitability as also to reduce administrative inefficiencies by reducing duplication of functions. It also results in operational convenience in terms of execution of contracts for Resulting Company and provision of related services regarding Asset Business in Demerged Company/First Transferee Company. In order to achieve the aforesaid objectives, the Board of Directors of the Applicant Companies have proposed to consolidate the First Transferor Company and the Transferee Company into a Single Company by assimilating the Asset businesses carried on by the First Transferor Company and the First Transferee Company after demerger of "Service Undertaking" from Demerged Company/First Transferee Company to Resulting Company.

6. The Board of Directors of the Applicant Companies in its Board Meetings held on 23.03.2021 has approved the Scheme with appointed date as 01.04.2020, subject to the approval of its shareholders and creditors.

7. There are no proceedings pending under Section 210 to 227 of the Companies Act, 2013, against any of the Applicant Companies.

8. The **Demerged Company/First Transferee Company** has filed certificate of the Auditor stating that as on 20.03.2021 there are **7** (seven) equity shareholders together holding 10,50,000 equity shares of the Demerged Company and they have given their consent by way of affidavits.

9. The **Demerged Company/First Transferee Company** has filed certificate of the Auditor stating that as on 20.03.2021 there are 2 (two) **Secured Creditors** and they have given their consent.

10. The **Demerged Company/First Transferee Company** has filed certificate of the Auditor stating that as on 31.01.2021 there are **2** (Two) **Unsecured Creditors** in the Demerged Company and they have given their consent.

11. The **First Transferee Company** has filed certificate of the Auditor stating that as on 20.03.2021 there are 2 (two) **Secured Creditors** and they have given their consent.

12. The **First Transferee Company** has filed certificate of the Auditor stating that as on 31.03.2021 there are 2 (two) **Unsecured Creditors** and they have given their consent.

13. Heard the submissions made in this regard by the Counsel for the Applicant Companies and perused the documents filed.

14. The **Equity Shareholders** of both the Applicant Companies have given consent affidavits agreeing to the Scheme and hence the meeting of the **Equity Shareholders** of both Applicant Companies is dispensed with, in terms of Section 230(9) of the Act.

15. The **Secured Creditors** of both the Applicant Companies have given consent affidavits agreeing to the Scheme and hence the meeting of the **Secured Creditors** of both Applicant Companies is dispensed with, in terms of Section 230(9) of the Act.

16. The **Unsecured Creditors** of both the Applicant Companies have given consent affidavits agreeing to the Scheme and hence the meeting of the **Unsecured Creditors** of both Applicant Companies is dispensed with, in terms of Section 230(9) of the Act.

17. In compliance of sub section(5) of Section 230 of the Act and Rule 8 of the Companies (CAA) Rules, 2016, the applicant company shall send notice under sub section (3) of Section 230 read with Rule 6 of the Rules with a copy of the Scheme, the explanatory statement and the disclosures mentioned in Rule 6 to (a) the Central Government through the Regional Director, South Eastern Region; (b) the Registrar of Companies, Andhra Pradesh; (c) the Income Tax Authorities; and (d) the Official Liquidator. The said notices be sent either by Registered Post or by Speed Post or by Hand Delivery at the Offices of the authorities as required by sub rule (2) of Rule 8 of the Rules. The aforesaid authorities, who desire to make any representation under sub section (5) of section 230 shall send the same to this Tribunal within a period of 30 (thirty) days from the date of receipt of such notice, failing which it shall be deemed that they have no representation to make on the proposed Scheme.

18. With the above directions, the Company Application i.e. CA(A) Merger & Amalgamation No. 6/230/AMR/2021 is disposed of.

TELAPROLU RAJANI
Member (Judicial)